



Subject Access Requests (Answers)

Subject Access Requests

Welcome to this module on
**SUBJECT ACCESS
REQUESTS**

LAUNCH

Subject Access Requests

Learning objectives

In this module, we will discuss:

- What is a Subject Access Request (SAR)
- How to recognise a request
- Who can make a request
- The legal requirement when responding to a request
- Exemptions
- Common mistakes and top tips



Subject Access Requests

What is a subject access request?



A subject access request is a request for personal data.

It supports the right of access given in GDPR.



Subject Access Requests

What is a subject access request?

Individuals are able to request:

- Confirmation that you are processing their personal data
- A copy of the data your organisation holds on them

Additionally, individuals can also request confirmation of:

- The purposes of processing
- The categories of personal data concerned
- The recipients or categories of recipients you disclose the personal data to
- Your retention period
- The existence of their right to request rectification, erasure or restriction or to object to such processing
- The right to complain to the Information Commissioner's Office (ICO)
- Information about the source of the data, where it was not obtained directly from the individual
- The existence of automated decision-making (including profiling)
- The safeguards you provide if you transfer personal data to a third country or international organisation



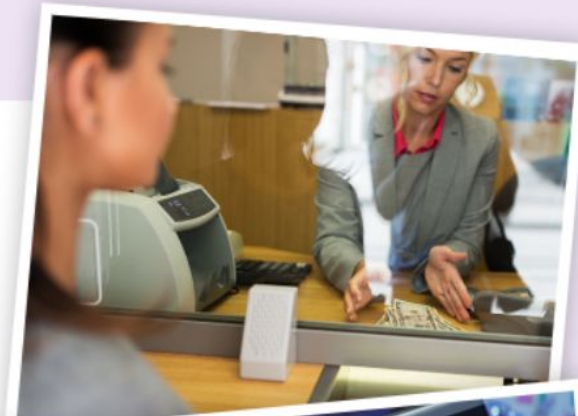
Subject Access Requests

How to recognise a request?

- A person may make a request in writing or verbally
- It may be made to any individual within the organisation or by social media

The person making the request need not specify the request to be a Subject Access Request.

Organisations may create a SAR form but be aware that individuals are not required to fill it in.



Subject Access Requests

How to recognise a request?

Consider the statements given by the four individuals shown on screen.
Select the ones which you believe are valid Subject Access Requests.



I would like a copy of all my data/data relating to x.



I would like to see what you have regarding me.



Can I see the email trail relating to my personal data?



I would like to see all the paper forms you have about me.

SUBMIT

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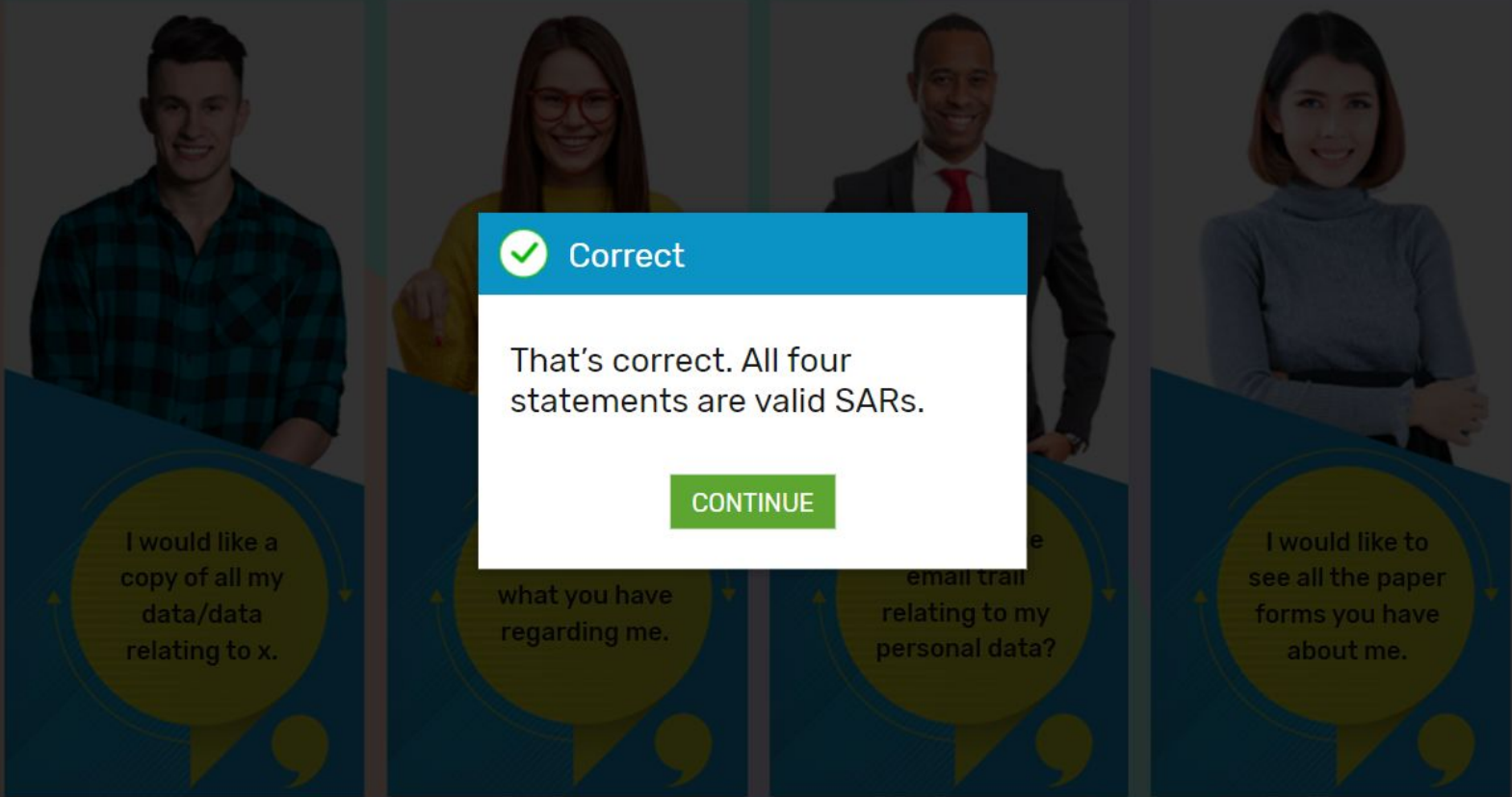
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SUBMIT

Subject Access Requests

How to recognise a request?

Consider the statements given by the four individuals shown on screen. Select the ones which you believe are valid Subject Access Requests.



The screen displays four individuals, each with a speech bubble containing a request:

- Individual 1 (Male, plaid shirt): "I would like a copy of all my data/data relating to x."
- Individual 2 (Female, glasses, yellow top): "what you have regarding me."
- Individual 3 (Male, suit, red tie): "email trail relating to my personal data?"
- Individual 4 (Female, grey turtleneck): "I would like to see all the paper forms you have about me."

Correct

That's correct. All four statements are valid SARs.

CONTINUE

SUBMIT

Subject Access Requests

How to recognise a request?

Some individuals may submit a request and quote the Freedom of Information (FOI) Act  while submitting a request, but it is in fact a SAR.

Please note that you are required to respond to the request even if the individual does not understand which law gives them this right.



Subject Access Requests

How to recognise a request?

Some individuals may submit a request and quote the Freedom of Information (FOI) Act  while submitting a request, but it

Freedom of Information (FOI) Act

Please
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A FOI request is not concerning personal data. It instead focuses on information held by public authorities.

which law gives them this right.



Subject Access Requests

Who can make subject access request?

The data subject may make the request themselves or nominate someone to do this for them.

Example:

A solicitor and their client.

The organisation must be satisfied that the data subject has requested that third party to make the request on their behalf.

Parents may make requests on behalf of their children until they are deemed able to understand. 

Example:

In Scotland this age is 12, whilst in the rest of the UK there is no defined age.



Organisations must ensure they:

- Are communicating with the correct person
- Take steps to verify the person's identity

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Example:

In Scotland there is no

Parents have all the rights, duties and responsibilities and authority which by law a parent of a child or guardian of a child estate has in relation to the child and his property.



Organisations must ensure they:

- Are communicating with the correct person
- Take steps to verify the person's identity

Subject Access Requests

Legal requirements when responding

The legal requirements for organisations when responding to SARs cover:

→ Click each requirement to learn more.



Subject Access Requests

Legal requirements when responding

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→ Click each requirement to learn more.

Time limits

- Organisations have one calendar month to respond including all non-working days
- This month begins the day you receive the request and expires on the corresponding day in the next calendar month

Example:

SAR received 16th November, the response date would be 16th December.

Form of response

Subject Access Requests

Legal requirements when responding

The legal requirements for organisations when responding to SARs cover:

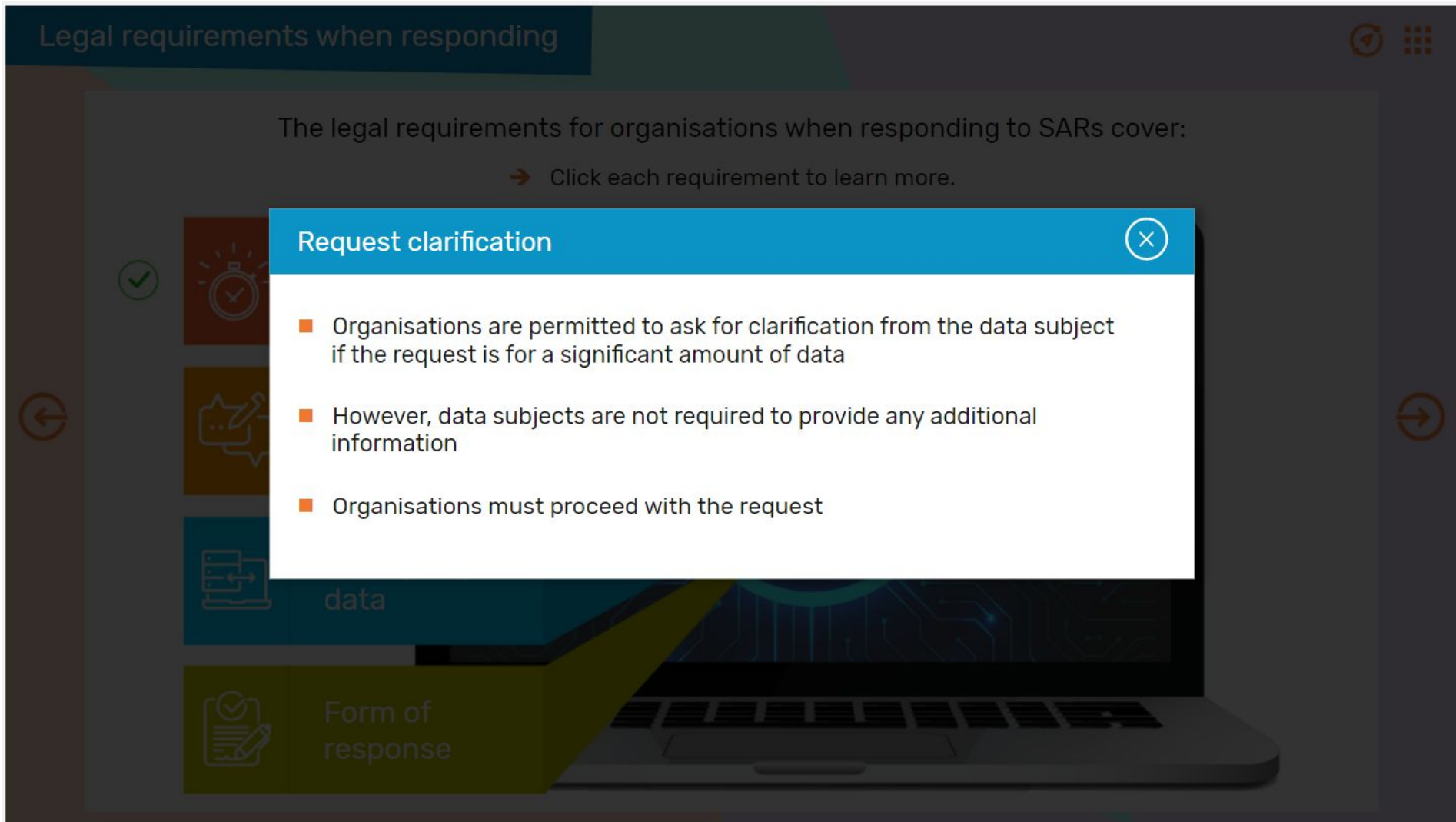
→ Click each requirement to learn more.

Request clarification

- Organisations are permitted to ask for clarification from the data subject if the request is for a significant amount of data
- However, data subjects are not required to provide any additional information
- Organisations must proceed with the request

data

Form of response



Subject Access Requests

Legal requirements when responding

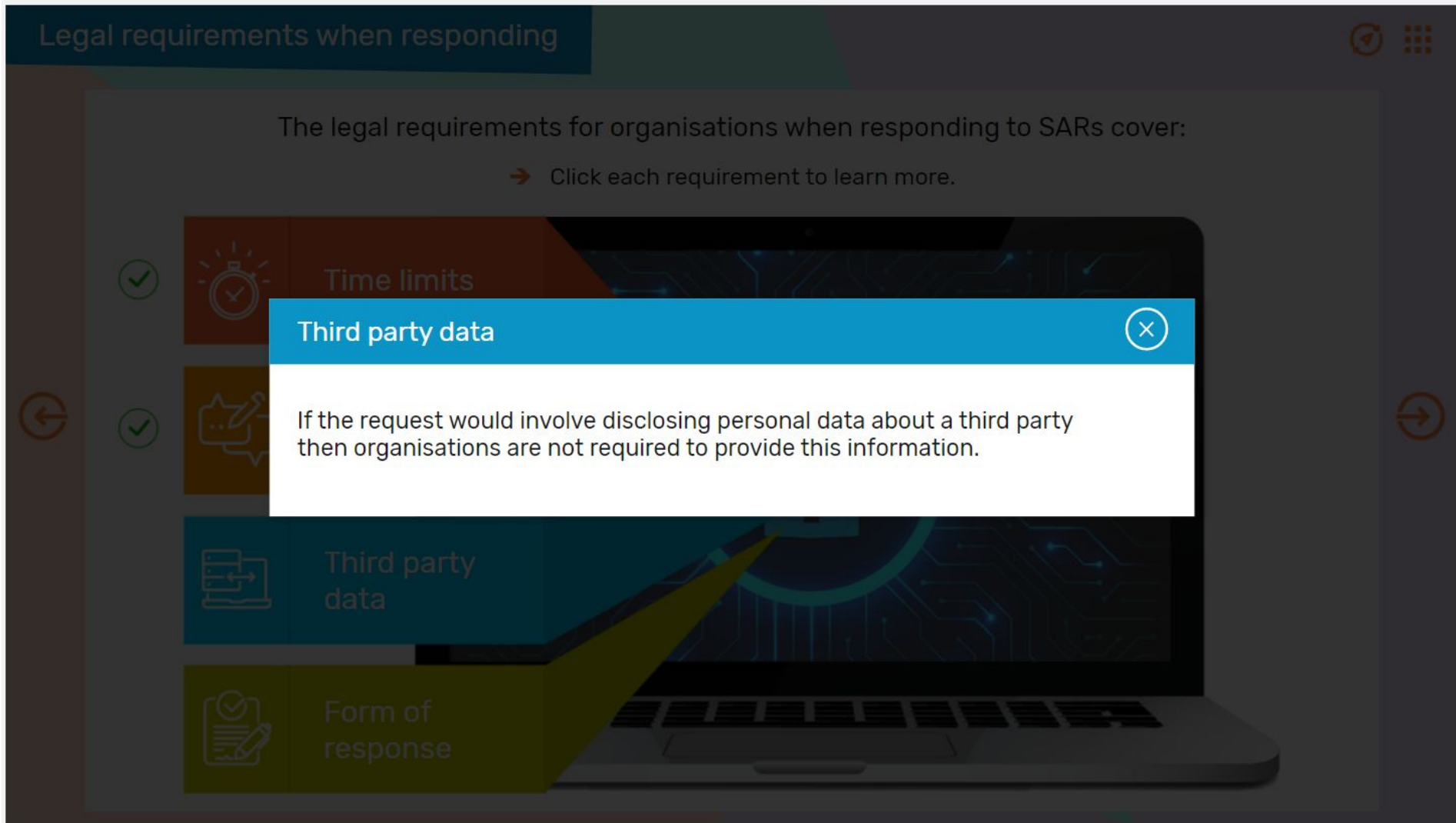
The legal requirements for organisations when responding to SARs cover:

→ Click each requirement to learn more.

- Time limits
- Third party data
- Form of response

Third party data

If the request would involve disclosing personal data about a third party then organisations are not required to provide this information.



Subject Access Requests

Legal requirements when responding

The legal requirements for organisations when responding to SARs cover:

→ Click each requirement to learn more.

- Time limits
- Form of response
- Third party data
- Form of response

Form of response

- If the request is made electronically, the response should be provided in this format unless specifically asked otherwise
- It should be provided in permanent form, easy to read and understand

Subject Access Requests

Exemptions



Organisations may refuse to respond to a request if it is manifestly unfounded or excessive.

The DPO will be able to help identify when a request meets this threshold.



The second exemption is put in place for Law Enforcement.

There are exemptions for the police in order to prevent and prosecute crimes.



There are other exemptions that may be applied such as the protection of another persons data, management purposes or where it may harm another person. These exemptions are not absolute and always contact your DPO if you think one may or should apply.

Subject Access Requests

Common mistakes

Some of the most common mistakes when responding to SARs are:

- 01 Believing them to be FOI's and not responding to them
- 02 Not redacting third party data correctly
- 03 Not providing all that has been requested
- 04 Failing to follow SAR procedures and policies

Subject Access Requests

Top tips



Here are some tips to ensure all SARs are handled correctly.

- ✓ Always inform your DPO
- ✓ Read the SAR procedure and policy
- ✓ Record the request
- ✓ Acknowledge the request and let the data subject know you are processing it
- ✓ Double check the information before sending it
- ✓ Do a 'test' request so you may find out where your organisation holds personal data so that this process may be quicker in the future

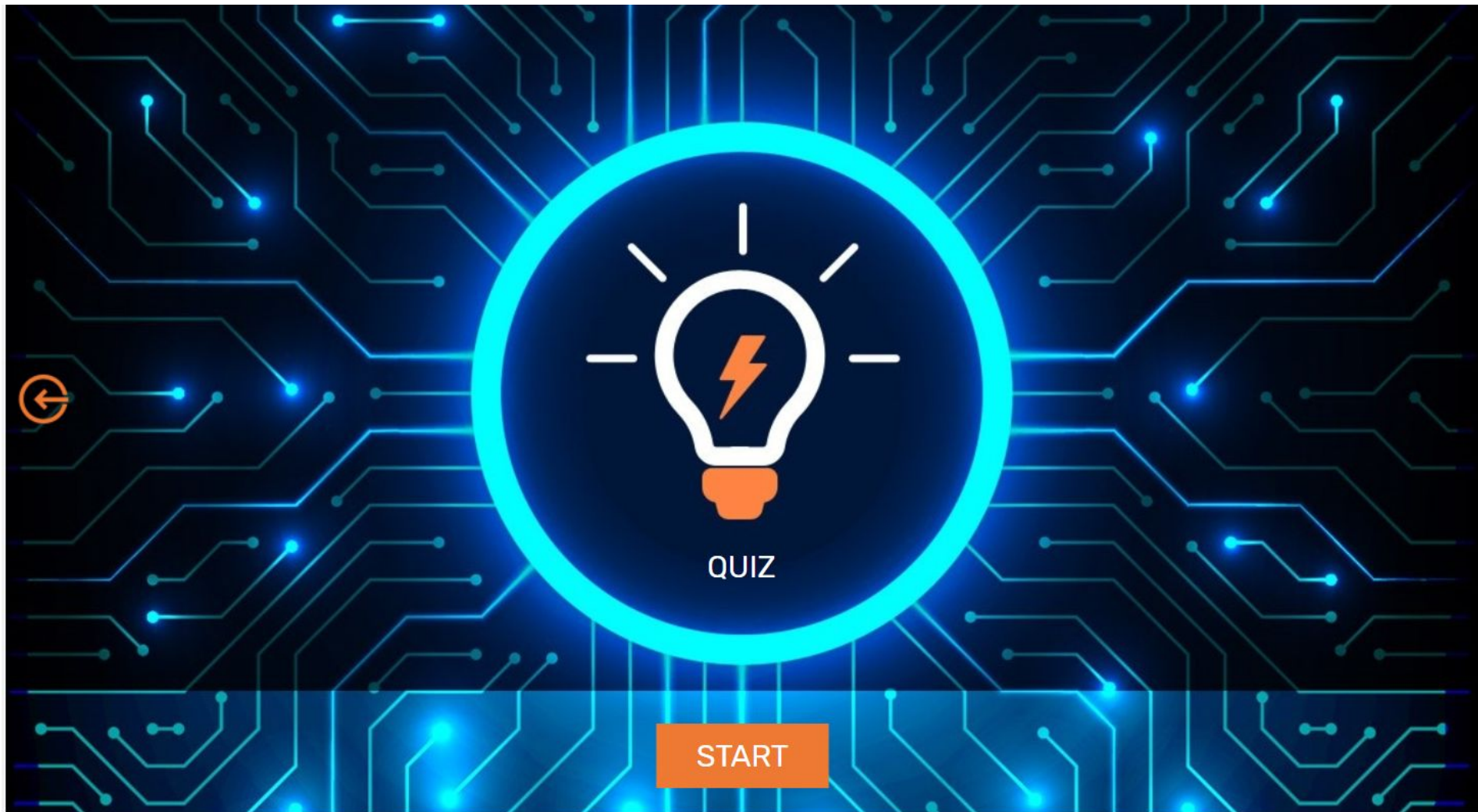
Subject Access Requests

Summary

- A Subject Access Request (SAR) is a request for personal data which supports the right of access given to data subjects in the GDPR
- A Subject Access Request may be made:
 - By a person in writing or verbally
 - To any individual within the organisation or via social media
- They need not specify that they are making a subject access request
- The data subject may make the request themselves or nominate a third party for the purpose
- Parents may make SARs on behalf of their children
- The legal requirements when responding to SARs cover:
 - Time limits - One calendar month to respond including non-working days
 - Request clarification - Only if the request is for a significant amount of data
 - Third party data - Personal data of a third party may not be disclosed
 - Form of response - Response should be provided in the format it's made in and in permanent form
- Organisations may refuse to respond to requests that are deemed unfounded or excessive
- Law enforcement agencies are exempt from sharing personal information that may be used in order to prevent or prosecute crimes



Subject Access Requests



Subject Access Requests

Quiz

Under a Subject Access Request, what can be requested?

- ✓ ☒ A copy of an application form they made
- ✓ ☒ Emails about them
- ☐ Organisational finances
- ✓ ☒ Why you are processing their data
- ☐ Internal policies
- ☐ Someone else's personal data

NEXT

Subject Access Requests

Quiz

How might you receive a Subject Access Request?

- ✓ ☒ By phone
- ✓ ☒ By letter
- ✓ ☒ Social media
- ✓ ☒ In person

NEXT

Subject Access Requests

Quiz

What should you do if you receive a Subject Access Request?

- ☐ Ignore it
- ✓ ☒ Tell your DPO or GDPR Lead

NEXT

Subject Access Requests

Quiz



Is this the following statement a Subject Access Request-
"Can you tell me the amount you spent on cleaning
products last year?"

☐ Yes

✓ ☒ No

NEXT

Subject Access Requests

Quiz

How long do you have to respond to a SAR?

- ☐ 40 days
- ☐ Two months
- ☒ One month
- ☐ Two weeks

NEXT

Subject Access Requests



You have successfully worked your way through this module.

EXIT